POLICY AND ACTION X.X

EAST PALO ALTO CITY COUNCIL STAFF REPORT

Date:	September 17, 2024
To:	Honorable Mayor and Members of the City Council
Via:	Melvin E. Gaines, City Manager
From:	Jeff Liu, Chief of Police
Subject:	Use of Surveillance Cameras and Automated License Plate Recognition Systems for Enhanced Public Safety

Recommendation

Adopt a resolution:

1. Authorizing the City Manager to install surveillance cameras at all City buildings, pedestrian/bicycle overcrossings and City parks to enhance public safety;
2. Authorizing a one-year automated license plate reader (ALPR) pilot program by directing the City Manager to enter a one-year contract with Flock Technology to install fixed automated license plate reader (ALPR) systems at strategic locations to enhance public safety; and
3. Waiving the formal bid procedure pursuant to East Palo Alto Municipal Code Section 2.84.070(D).

Alignment with City Council Strategic Plan

This recommendation is primarily aligned with:

Priority No. 1: Enhance Public Safety and Emergency Preparedness

Background

In 2022, following City Council direction, the City began installing surveillance cameras to enhance public safety at Jack Farrell Park, Martin Luther King Jr. (MLK Jr.) Park and on

the US 101 bicycle/pedestrian overcrossing. Initially, temporary cameras were installed at the two parks. The City later installed long-term surveillance cameras at Jack Farrell Park and is working with a technology company called Juganu to pilot the use of smart fixtures with lighting, WiFi/5G, video, and other capabilities at MLK Jr. Park and on the US 101 overcrossing. Installation of the Juganu system at MLK Jr. Park is expected to be completed by September 20, 2024. Installation of the Juganu system on the US 101 overcrossing is expected to be completed by February 2025.

The City Council has not provided direction or authorization to install cameras at other locations throughout the City.

In addition to surveillance cameras, the City would like to explore the use of automated license plate reader (ALPR) systems as an investigative tool for the Police Department. For reasons outlined below, the City proposes to launch a one-year ALPR pilot program using Flock technology.

This report outlines the utility of surveillance cameras and ALPRs, potential arguments against the use of such technologies, and a proposed approach to the City using surveillance cameras and ALPRs. Ultimately, this report recommends that the City Council authorize the use of surveillance cameras at City facilities, parks, and overcrossings. It also recommends that the City Council authorize a one-year pilot program in which the City would use ALPRs at strategic locations throughout the City.

Analysis

The Utility of Surveillance Cameras

The use of surveillance cameras has become an integral component of public safety strategies in municipalities across the country. As the East Palo Alto Police Department (EPAPD) continues to explore innovative ways to enhance public safety, the deployment of surveillance cameras in strategic locations throughout the city could be a critical tool.

EPAPD has experienced a good amount of success investigating violent crimes in our community through community relationships and community members sharing privately-owned surveillance video footage for police investigative purposes. While privately owned surveillance cameras have helped solve crimes, they have significant limitations. These cameras are scattered, often lacking comprehensive coverage of public areas, leading to gaps in critical evidence. Footage quality varies, with poor resolution and lighting sometimes rendering it unusable for investigations. Additionally, frequent malfunctions due to poor maintenance reduce their reliability. Access to footage is also challenging, as it requires owner consent or a court order. These issues highlight the need for a more reliable and cohesive surveillance system to better support law enforcement.

The presence of surveillance cameras act as a deterrent to criminal activity. Research shows that security cameras can help reduce crime in public areas. Security cameras

have been shown to decrease crime rates by about 24%, particularly for car theft, burglary, and drug-related offenses. The knowledge that actions are being recorded could deter potential criminals from engaging in illegal activities, thereby enhancing overall community safety.

In addition to being a crime deterrent, surveillance cameras are vital to police investigations, providing law enforcement with crucial evidence to identify suspects, witnesses, and the sequence of events surrounding a crime. This evidence is often instrumental in both solving crimes and securing convictions in court. Moreover, the ability to reconstruct events through video footage can lead to more accurate and efficient investigations, ultimately contributing to a safer community.

The lack of witnesses and corroborating evidence presents major challenges to law enforcement investigations of major crimes. In many cases, crucial evidence is either missing or insufficient, hindering the progress of investigations and the ability to apprehend suspects swiftly. Surveillance data is an effective means for providing information necessary for investigating and justly solving cases efficiently and effectively.

The use of surveillance cameras can also enhance community trust in law enforcement. When employed with transparency and accountability, these systems serve as a safeguard for both the public and police officers, ensuring that interactions are documented and that both parties are protected. This transparency is crucial in fostering a sense of security and trust within the community.

City of East Palo Alto Public Surveillance Cameras

In 2022, a violent gun battle erupted in Jack Farrell Park, where over 30 rounds were fired by multiple gunmen resulting in three injuries, one of which was fatal. The only video evidence available was recorded on a smart phone by a young girl who was playing in the park. The young girl only captured a small portion of the shooting, as she was running for her life. The investigation of this incident was particularly challenging as witnesses either refused to provide information or denied having any information. Investigators were fortunate enough to have collected enough forensic evidence to present an actionable case to the District Attorney's Office. Surveillance cameras, had they been installed and operational, could have fully captured the incident and facilitated the comprehensive determination of how the incident occurred and identified the people responsible for the shooting.

Public parks, City facilities, and pedestrian/bicycle overcrossing bridges are high-priority locations for the installation of surveillance cameras. These areas are particularly vulnerable to criminal activities due to their open and accessible nature and the lack of surveillance has made it difficult to monitor and deter such activities.

As mentioned earlier, following City Council direction, the City has installed, or is in the process of installing, surveillance cameras to enhance public safety at Jack Farrell Park, Martin Luther King Jr. (MLK Jr.) Park and on the US 101 bicycle/pedestrian overcrossing. The City also has facility security systems with cameras installed at the Corporation Yard on Tara Road, at Cooley Landing, at the Gloria Way Well, and at 1960 Tate Street. These

cameras are only focused on security of the buildings, not surveillance of public areas.

Parks are frequented by residents, visitors, and families. They must be safe spaces in our community and free of criminal activity, so they are available for their intended purpose, a safe outdoor space for families.

The current pedestrian overcrossing bridge is a vital thoroughfare for pedestrians. Unfortunately, its remote location makes it susceptible to criminal activities. The Council authorized installation of surveillance cameras on the existing bridge; however, it has not directed staff to install cameras on the new bridge. Staff therefore requests direction from the City Council to authorize installation of cameras on the new bridge that is scheduled to open in late 2025. This would enhance public safety by deterring crime and serving as a vital investigative tool for law enforcement, increasing the safety of those who use it daily.

Staff recommends that the Council further authorize the installation of surveillance cameras at all City parks and facilities as well as on bicycle/pedestrian overcrossings. If so authorized, staff will explore options for installing surveillance cameras and return to council for any necessary funding.

The installation of surveillance cameras in these areas would not only aid in solving crimes by providing crucial evidence but also serve as a deterrent to potential offenders, creating a feeling of safety and security for those intending to enjoy our parks for healthy activities and travel safely across US 101.

<u>The Utility of Automated License Plate Recognition (ALPR) Technology</u>

Automated License Plate Recognition (ALPR) technology has proven to be a vital investigative tool for law enforcement agencies when conducting criminal investigations. ALPR cameras, whether installed at fixed locations or placed on a vehicle, record vehicle description data, location, and date / time. This technology is as objective and unbiased, only recording this descriptive detail and nothing about the personal characteristics or identifying information of drivers or pedestrians within camera view.

Once this information is collected by the system, the automated system checks the license plate data against the same state databases that police officers use to check vehicle license plates. This includes stolen vehicles and other crime related vehicles listed in the database connected to crimes, missing persons related vehicles, and other “stop requests” that law enforcement agencies have placed in the system. Any license plates matching law enforcement identified vehicles are relayed to officers and dispatchers monitoring the system as an alert. Time permitting, officers may attempt to locate vehicles related to alerts. Every alert would ultimately be confirmed with the originating agency, and the officer receiving the alert must confirm the information, when practicable, through the California Law Enforcement Telecommunications System (CLETS) before taking any enforcement action.

In most cases, the data collected by the ALPR system is stored in remote servers owned by the vendor, and accessible through their online platform for a period, which is determined by the client. When the data is considered evidence in a criminal investigation, the data will be downloaded and entered into evidence in accordance with established

evidence procedures.

The City does not currently have ALPR systems installed, but believes ALPRs would be a vital investigative tool for identifying vehicles associated with criminal investigations. In 2023, a young man was lying down on Kavanaugh wearing dark clothing when a vehicle drove over him, causing fatal injuries. A private surveillance camera recorded the side of the responsible vehicle, but not the license plate. A witness watched as the responsible driver continued driving on Kavanaugh toward University, stopping for a stop sign and a red light at University Avenue before turning eastbound toward the Dumbarton Bridge.

Investigators accessed every surveillance camera system available to them and scoured the neighborhood seeking witnesses but were ultimately unable to determine the vehicle's license plate number. Had ALPR cameras been deployed on University Avenue near the city limit, the license plate of the suspect vehicle could have been captured, giving investigators the investigative lead necessary to identify the driver of the vehicle.

In 2024, a man was attacked by a knife-wielding assailant at the corner of University Avenue and Bell Street. The man suffered fatal injuries. Grainy surveillance footage from the Shell gas station showed a witness vehicle stop on University Avenue, back up, then pull over to watch, and possibly video record the attack. The occupants of the vehicle are eyewitnesses to the murder. Their statements and possible evidence are vital to the investigation and prosecution of the crime. Despite numerous attempts to solicit information from our community about the vehicle and witnesses in the vehicle, including broadcasting the video footage through the media, they remain unidentified to this day. Had ALPR cameras been deployed, the vehicle's license plate would likely have been captured, and investigators would have the investigative lead needed to identify key witnesses in the case.

High visibility surveillance cameras and cameras equipped with ALPR technology would likely increase public safety and undoubtedly provide investigators with a robust investigative tool for use during criminal investigations.

<u>Arguments Against the Use of ALPR Technology</u>

While the City believes ALPR technology would be beneficial, there are concerns that community members may have. Arguments against ALPR technology are typically rooted in concerns about privacy, civil liberties, data security, and potential misuse. Below, these concerns are further discussed in light of ways the City would mitigate such concerns.

1. **Privacy Concerns:** ALPRs can track the movements of individuals by recording the locations and times of their vehicles. Critics argue that this mass surveillance infringes on the right to privacy, especially when data is collected indiscriminately and retained for long periods.

   Mitigation: Flock technology is designed for users to search the database at a later time for valid investigative reasons with audit trails to curb abuse. The City would conduct monthly audits to ensure the system is being used appropriately. Any abuse of the system will expose the user to disciplinary action as it would constitute

an act of dishonesty or conduct unbecoming of a sworn officer.

2. **Potential for Abuse:** There is a risk that ALPR data could be used for purposes beyond its original intent, such as tracking individuals without a warrant, targeting specific groups, or being sold to private companies. Without strict oversight, this data could be misused by authorities or hackers.

   Mitigation: The monthly audits of user activity would ensure the system is not being used for anything outside it's original intent.

3. **Chilling Effect:** The widespread use of ALPRs may lead to a "chilling effect," where individuals alter their behavior due to the fear of being constantly monitored. This could deter people from participating in lawful activities, such as attending protests or visiting sensitive locations like counseling centers.

   Mitigation: Again, Flock technology would be used by the City for investigations of criminal activity only, not to monitor individuals engaged in lawful or constitutionally protected activity. The City could do some outreach to make this clear to allay concerns of oversurveillance and thereby head off the chilling effect of its use.

4. **Data Security Risks:** The vast amount of data collected by ALPRs is vulnerable to breaches. If hacked, this information could be used for malicious purposes, including identity theft, stalking, or other crimes. Ensuring the security of such data is a significant concern.

   Mitigation: All images and metadata are encrypted from on-device to storage in the cloud using industry standards for encryption for internet communications. Flock Safety uses Amazon Web Services cloud storage and KMS-based encryption, limiting access to the encryption keys. All CJIS data is stored in the AWS GovCloud and is only available to Law Enforcement agencies. No CJIS data is shared with non-Law Enforcement Flock Safety Customers. Flock Safety reports no breaches to their cloud-based storage.

   Data collected by Flock cameras in our jurisdiction would be owned by our agency and would never be sold or shared by Flock to any private entities. The information collected by flock cameras, is available on Flock's server for 30 days. After 30 days, it is automatically deleted from Flock's secure server.

5. **Lack of Regulation and Oversight:** In many places, there is insufficient regulation governing the use of ALPRs. Critics argue that without clear rules on how data should be collected, stored, and shared, there is a risk of abuse and overreach by law enforcement or other entities.

   Mitigation: If the City agrees to use Flock ALPR technology, the City would adopt a Lexipol policy governing the use of the technology and ensure compliance with the policy via monthly audits. A copy of the unrevised Lexipol draft policy is attached for reference. The City would also, as part of our agreement with Flock, set up and maintain a transparency portal webpage similar to transparency portals already in existence in other agencies. The transparency portal would include a description of the technology as well as data showing vehicles detected, hot list hits, and

investigative searches by officers over their most recent 30 days. Any member of the public with internet access may query our usage. (https://www.flocksafety.com/faq#privacy)

at any time.

6. **Disproportionate Impact on Marginalized Communities:** There are concerns that ALPRs could disproportionately target marginalized communities, either intentionally or as a result of biased policing practices. This could exacerbate existing inequalities and lead to further discrimination.

   Mitigation: The City, including EPAPD, values community trust and ensuring all members of our multicultural community are treated fairly and with respect. EPAPD has a long-established history of community building and establishing relationships with community members. The City's use of ALPRs would not target any group, but would be used as an investigative tool to help solve crimes. The ALPR camera does not identify any individual or access their personal information through its analysis of license plate numbers. The data captured by the ALPR system is completely anonymous. There is no personally identifiable information (PII) contained in an ALPR record and the authorized user can only determine the registered owner of a vehicle by querying a separate law enforcement DMV database of vehicle license plate records, which is restricted, controlled, and audited.

7. **Erosion of Anonymity:** ALPRs contribute to the erosion of anonymity in public spaces, making it increasingly difficult for individuals to move about without being tracked.

   Mitigation: Cell phones, private security cameras, private ALPRs, and many other technologies diminish public anonymity. The City's use of ALPRs would only be used as a law enforcement tool in response to legitimate law enforcement purposes such as criminal cases or investigations.

<u>Proposed One-Year Pilot Program Using Flock ALPR Technology</u>

Staff believes that ALPR technology would be a beneficial police investigative tool, and that it can be deployed and managed strategically to mitigate concerns that people may have. To determine if ALPR Technology, specifically Flock, would be a viable investigative tool for the East Palo Alto community, the Police Chief convened a meeting of the Chief's Advisory Team, a body consisting of six (6) community members representing different generations and backgrounds. The team received a presentation from Flock then engaged in a question-and-answer period with Flock and department personnel. These community members raised many of the concerns which have been discussed above.

Ultimately, the Advisory Team felt a one-year trial period with Flock would give our community an opportunity to assess the benefits of the technology as well as the extent of privacy concerns. During this pilot period, the Police Department would provide quarterly updates to the City Council that describe the Department's use of the technology and any complaints the City may have received. At the end of the pilot program, staff would seek

council direction on whether to continue use of ALPR technology in East Palo Alto.

Sole Source Acquisition of Flock Technology for Pilot Program

Staff recommends that the City waive formal bidding and proceed with a sole-source procurement for Flock technology for a number of reasons. 1) Flock technology is used by many agencies in neighboring jurisdictions, as well as private entities in East Palo Alto including the retail center, which allows the City to receive and share information with other jurisdictions, expanding the tools investigative capacity. This functionality would be optimized if the City used Flock technology given the nature of the software and prevalence of use by neighboring jurisdictions. As such, staff believes this provides an unique capability that other technologies would not provide. 2) The Chief's community advisory team has previewed Flock technology and provided feedback which has shaped the Department's approach toward its use, described above, including opinions about privacy concerns. 3.) Flock technology is being proposed on a pilot basis, thereby alleviating concerns about robust procurement.

More about Flock Technology

Flock Safety (Flock) began its technology company in 2017 as a more efficient and less expensive alternative to the ALPR technology available at the time. The company quickly grew in capability and coverage, and over the past several years, ALPR cameras using Flock have become vital law enforcement investigative resources throughout the San Francisco Bay Area. Flock's closed network of 80+ Bay Area law enforcement agencies creates a robust database of shared information that greatly expands each law enforcement agency's investigative ability. The City can only access this closed database through the use of Flock technology. Access to this database is only available to Flock customers.

In fact, Flock's technology is consistently used by other agencies throughout the Bay Area to locate and apprehend wanted vehicles and subjects in connection with violent crimes that occurred in East Palo Alto, when their vehicles had been entered into the wanted vehicle system.

Fixed Flock ALPR cameras are designed to photograph the rear of vehicles passing in camera view. The photos are stored on the Flock server for a period determined by the client. In our case, staff is seeking a retention period of 30 days. Flock's technology reads the individual license plate numbers and allows users to search for license plate numbers or vehicle descriptions in a particular location when needed for criminal investigations. Additionally, Flock technology uses "fingerprint" technology that can track a vehicle based on unique characteristics (bumper stickers, roof racks, etc) and movements like which cameras the car is hitting off of. At the conclusion of 30 days, the photo and license plate number would be automatically and permanently deleted from the server. Essentially, Flock's technology is a searchable temporary database containing photos of the back of vehicles. Flock's technology is incapable of conducting DMV queries of license plates. Investigators accessing Flock must conduct separate searches through

existing databases to determine more information about the registered owner.

Personnel who access the Flock system would be assigned individual access accounts with built in audit trails to document use of the technology to curb abuse. To access Flock data, users are required to enter the case number assigned to their criminal investigation. If the Flock query resulted in evidence of a crime, the data can be downloaded as evidence and attached to the criminal investigation.

Flock allows data to be shared with partner agencies on a case-by-case basis. All users must follow the same access rules. Violations of the rules can result in agencies being suspended from accessing the data.

Flock offers a transparency portal for each agency on their website which shows updated information including how many vehicles had been scanned, how many wanted vehicle hits, and how many queries had been conducted. The East Palo Alto Police Department will make the link to the portal accessible on our website.

Flock prohibits the use of any ALPR data to be used for immigration purposes. Additionally, California law prohibits law enforcement agencies from sharing data with agencies outside the State of California. Further, data collected by the Flock system is owned by the client, and never sold.

Fiscal Impact

The installation of 25 fixed ALPRs will require an initial expense of $82,750 for one year of service. While this item was not included in the Fiscal Year 2024-2025 police department budget, sufficient savings within the budget are available to cover the cost, eliminating the need for any additional appropriation.

Staff is recommending a one-year subscription to Flock Technology, during which staff would evaluate the effectiveness of the ALPR technology. Prior to the completion of the year subscription, staff will report to City Council on the effectiveness of the technology and either seek council authority to issue an RFP for ALPR technology, enter a longer-term contract with Flock, or terminate the use of ALPR technology.

Public Notice

The public was provided notice of this agenda item by posting the City Council agenda on the City's official bulletin outside City Hall and making the agenda and report available at the City's website and the San Mateo County Library at 2415 University Avenue.

Environmental

The action being considered does not constitute a "Project" within the meaning of the California

Environmental Quality Act (CEQA), pursuant to CEQA Guideline section 15378 (b)(5), in that it is a government administrative activity that will not result in direct or indirect changes in the environment.

Government Code § 84308

Applicability of Levine Act: No, as the proposed action does not involve an entitlement.

Analysis of Levine Act Compliance: Not applicable.

Attachments

1. Flock Safety quote
2. Resolution
3. Draft Lexipol ALPR Policy